

Rochdale Corporation Act, 1958

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CHAPTER xxxviii

An Act to confer further powers on the mayor aldermen and burgesses of the county borough of Rochdale in relation to lands streets and buildings and the local government health welfare improvement and finances of the borough and to make further provision with reference to their transport and water undertakings and for other purposes. [23rd July 1958.]

WHEREAS—

(1) The county borough of Rochdale is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough acting by the council (in this Act respectively referred to as “the borough” and “the Corporation”):

(2) It is expedient that further and better provision should be made with reference to lands streets and buildings and for the local government health welfare and improvement of the borough and the finances of the Corporation and that the powers of the Corporation in relation thereto should be enlarged and extended:

(3) It is expedient that further and better provision should be made and that further powers should be conferred on the Corporation in connection with their transport and water undertakings:

(4) It is expedient that the other provisions in this Act should be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

- Short title.** 1. This Act may be cited as the Rochdale Corporation Act 1958.
- Division of Act into Parts.** 2. This Act is divided into Parts as follows:—
- Part I.—Preliminary.
 - Part II.—Lands.
 - Part III.—Streets sanitation buildings etc.
 - Part IV.—Fire precautions.
 - Part V.—Weights and measures.
 - Part VI.—Transport.
 - Part VII.—Water.
 - Part VIII.—Finance.
 - Part IX.—Miscellaneous.
 - Part X.—General.
- Interpretation.** 3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.
- (2) In this Act unless the subject or context otherwise requires the following expressions have the following meanings:—
- “ Act of 1925 ” means the Rochdale Corporation Act 1925;
 - “ Act of 1930 ” means the Rochdale Corporation (General Powers) Act 1930;
 - “ Act of 1933 ” means the Local Government Act 1933;
 - “ Act of 1936 ” means the Public Health Act 1936;
 - “ Act of 1937 ” means the Rochdale Corporation Act 1937;
 - “ Act of 1947 ” means the Town and Country Planning Act 1947;
 - “ Act of 1948 ” means the Rochdale Corporation Act 1948;
 - “ appointed day ” has the meaning which is assigned to it by section 73 (The appointed day) of this Act;

- “borough” means the county borough of Rochdale;
- “commission” means the British Transport Commission;
- “contravention” includes a failure to comply and
“contravene” shall be construed accordingly;
- “Corporation” means the mayor aldermen and burgesses
of the borough;
- “council” means the council of the borough;
- “daily fine” means a fine for each day on which any offence
is continued after conviction;
- “enactment” includes an enactment in this Act or in any
general or local Act and any order byelaw scheme or
regulation for the time being in force within the borough;
- “general rate fund” and “general rate” mean respectively
the general rate fund and the general rate of the
borough;
- “magistrates’ court” has the meaning assigned to that
expression by section 124 of the Magistrates’ Courts
Act 1952;
- “Minister” means the Minister of Housing and Local
Government;
- “statutory borrowing power” includes a power of borrowing
money conferred on the Corporation by or under any
enactment except paragraph (a) of subsection (1) of
section 215 of the Act of 1933;
- “statutory security” means any security in which trustees
are for the time being authorised by law to invest trust
moneys and any mortgage bond debenture debenture
stock stock or other security created by a local authority
as defined by section 34 of the Local Loans Act 1875
but does not include annuities rentcharges or securities
transferable by delivery;
- “statutory undertakers” means any company body or
person authorised by any enactment to supply water
electricity or gas;
- “town clerk” “medical officer” “surveyor” and “public
health inspector” mean respectively the town clerk the
medical officer of health the surveyor and any public
health inspector of the borough and include any person
duly appointed by the Corporation to discharge
temporarily the duties of any of those officers.

(3) The local Acts in force within the borough shall have effect as if the references therein to the expression “statutory security” as defined thereby were omitted and references to the expression “statutory security” as defined by this section were substituted therefor.

PART I
—cont.

(4) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

Amendment
of section 22
of Act of
1930.

4. Section 22 (Power to develop land) of the Act of 1930 shall have effect as if for subsection (1) of that section there were substituted the following subsection:—

“(1) (a) The Corporation may (with the consent of the Minister) lay out and develop any land acquired by them under section 75 (Further powers for acquisition of land) of the Act of 1925 and any other land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses flats shops offices industrial buildings garages warehouses and other buildings and construct sewer drain pave channel and kerb streets and may sell lease exchange or otherwise dispose of any such lands houses flats shops offices industrial buildings garages warehouses and other buildings upon and subject to such terms conditions and restrictions as they may think fit:

Provided that nothing in this section shall apply to land acquired by the Corporation under section 38 or section 40 of the Town and Country Planning Act 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

(b) In this section the expression ‘industrial building’ includes a building used or designed or suitable for use for the carrying on of any process for or incidental to any of the following purposes (namely):—

- (i) the making of any article or part of any article; or
- (ii) the altering repairing ornamenting finishing cleaning washing packing or canning or adapting for sale or breaking up or demolition of any article; or
- (iii) without prejudice to the foregoing paragraphs the getting dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine;

being a process carried on in the course of trade or business and for the purposes of this definition the expression ‘article’ means an article of any description including a ship or vessel.”

5. Notwithstanding anything in subsection (5) of section 1 of the Small Dwellings Acquisition Act 1899 where any person repays any part of any advance of money made to such person by the Corporation under the Small Dwellings Acquisition Acts 1899 to 1923 the amount of each periodical payment subsequently to be made by such person need not be reduced in accordance with the table referred to in the said subsection but may remain unvaried and in that event the period during which the advance is to be repaid shall be appropriately reduced.

PART II
—cont.

As to
repayment
of loans
under Small
Dwellings
Acquisition
Acts 1899 to
1923.

6. Section 9 (Power to Corporation to advance money for erection of buildings) of the Act of 1948 shall have effect as if—

Amendment
of section 9
of Act of
1948.

(a) after the words “to erect buildings” in subsection (1) thereof there were inserted the words “or to extend or improve any existing building”;

(b) at the end of subsection (4) thereof there were inserted the words “Provided however that as an alternative to reducing the amounts of the periodical repayments of the advance such amounts may remain unvaried and in that event the period during which the advance is to be repaid shall be appropriately reduced”;

(c) before the words “and to keep the building in good repair” in subsection (5) thereof there were inserted the words “or (if the Corporation elect themselves to insure the said building against fire) to repay to the Corporation the amounts of any premiums paid by them from time to time in that behalf”;

(d) after the word “erection” in subsections (5) (6) and (7) there were inserted the words “extension or improvement”; and

(e) after the word “erected” in subsections (5) and (7) there were inserted the words “extended or improved”.

7.—(1) The Corporation may provide and maintain and manage parking places for vehicles on any storey or storeys of or under any building in the borough for the time being belonging to them and may prescribe the class or classes of vehicles which may use any such parking place and may reserve any part thereof for the use of their passenger transport undertaking or any vehicles belonging to them.

Parking
places in
buildings.

(2) The Corporation may—

(a) for the purpose of providing parking places for vehicles acquire buildings or acquire land and erect buildings (including shops and offices) thereon; and

(b) make such charges as they think fit for the use of parking places provided under this section.

PART III

STREETS SANITATION BUILDINGS ETC.

Streets

Recovery of private street works and similar charges where owner unknown.

8.—(1) Where any private street works have been completed but the Corporation are unable to recover the amount due from the owner of any premises or otherwise under the provisions of any enactment relating to private street works for the time being in force in the borough by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount became due and at reasonable intervals thereafter be found the Corporation may at any time after the expiration of twelve years from the date when the said amount became due apply to the county court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in the Corporation absolutely and thereupon the Corporation may deal with the said premises as if the said premises were land which was not required for the purpose for which it was acquired.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Corporation shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of twelve years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under section 77 of the Public Health Act 1925 together with all costs and expenses reasonably incurred by the Corporation.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it were a sum awarded to be paid to an owner who cannot be found and as if the Corporation were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of the said Act.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the Corporation in addition to any existing rights powers and remedies for the recovery of expenses and shall be exercisable by the Corporation in respect of all private street works whether completed before or after the passing of this Act.

(5) In this section “ private street works ” means works executed under the provisions of any enactment relating to private street works or private improvement works for the time being in force in the borough.

9. Section 150 of the Public Health Act 1875 shall have effect in its application to the borough as if after the words “ the expenses incurred by them in so doing ” there were inserted the words “ including the expenses of sewerage levelling paving metalling flagging channelling or lighting any points of intersection with any other streets ”.

Amendment
of section 150
of Public
Health Act
1875.

10. If any tree or any fence wall hoarding or similar erection or any part thereof shall fall on or across any street in the borough so that obstruction or danger is caused or is likely to be caused to persons or vehicles using such street the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree fence wall hoarding or similar erection or any part thereof was situated from the occupier thereof.

Removal of
trees etc.
from streets.

11. Section 27 (Crossings for horses or vehicles over footways) of the Act of 1937 shall have effect as if the references therein to any kerbed footway or paved footway included a reference to any grass verge.

Amendment
of section 27
of Act of
1937.

Drains etc. and sanitary conveniences

12.—(1) As from the appointed day the Corporation may if it is reasonable so to do having regard to all the circumstances of the case—

Dealing with
drains sewers
and water
pipes before
demolition of
premises.

- (a) by counter-notice served within six weeks from the receipt of a notice under section 15 (Demolition of buildings) of this Act; or
- (b) in any notice served in accordance with the provisions of subsection (12) of the said section 15 on the owner of a building to be demolished or taken down in pursuance of a demolition order or clearance order;

require the person giving such notice under the said section 15 or the owner of the building to which the said demolition order or said clearance order applies (as the case may be) either—

- (i) to seal any sewer drain or water pipe on in or under the site of the building to which the said notice demolition order or clearance order relates; or
- (ii) to take up and remove any such sewer drain or water pipe and seal any other sewer drain or water pipe with which such first-mentioned sewer drain or water pipe may be connected;

PART III
—cont.

and to make good and restore to the satisfaction of the Corporation the surface of the ground disturbed by or interfered with by the execution of any works under paragraph (i) or paragraph (ii) of this subsection. Any counter-notice or notice served in pursuance of paragraph (a) or paragraph (b) (as the case may be) of this subsection shall state the effect of subsection (3) of this section.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to counter-notices and notices given under paragraphs (a) and (b) of subsection (1) of this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) Before sealing or taking up and removing any sewer drain or water pipe pursuant to this section the person executing the work shall give to the Corporation not less than forty-eight hours' notice of his intention to commence such work and if he fails to give such notice he shall be liable to a fine not exceeding five pounds.

As to premises
without
sufficient
water supply.

13.—(1) Where the Corporation are satisfied—

(a) that by reason of any injury to or defect in a service pipe or other water fitting there is not at all times a supply of wholesome water in pipes in any occupied house in the borough or within a reasonable distance of such house sufficient for the domestic purposes of the occupants and readily available to them; and

(b) that having regard to all the circumstances the supply should be restored without unreasonable delay to avoid prejudice to health or a nuisance;

the Corporation may serve a notice upon the owner of the house requiring him to do such work as may be necessary to repair the injury to or remedy the defect in the service pipe or other water fitting and to restore the supply to the house or within a reasonable distance thereof as the case may be.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) In this section the expressions “service pipe” and “water fitting” have the same respective meanings as in the Third Schedule to the Water Act 1945.

Amendment
of section 36
of Act of
1948.

14. Section 36 (Cleansing of sinks and gullies) of the Act of 1948 shall have effect as if after the words “undertake the cleansing” there were inserted the words “or repair”.

Buildings and structures

PART III

—cont.

15.—(1) As from the appointed day no person shall commence to demolish or take down any building or part thereof within the borough without first giving notice to the Corporation of his intention so to do and the Corporation may require such person to comply with such reasonable terms and conditions as they think fit including terms and conditions requiring—

Demolition of
buildings.

(a) the shoring up of adjacent buildings; and

(b) the removal of any material or rubbish resulting from the demolition or taking down and the clearance of the site;

to the satisfaction of the Corporation within a reasonable time to be prescribed by the Corporation:

Provided that this section shall not apply to the demolition or taking down of an internal part of a building if such demolition or taking down is incidental to an internal alteration of the building the use of which it is intended to continue.

(2) Where notice is given to the Corporation under subsection (1) of this section and such notice is accompanied by particulars of such building or part thereof and of the proposals in regard thereto the Corporation shall be deemed to have approved the proposals unconditionally unless within six weeks from the receipt thereof or within such longer period as the person giving the notice may agree in writing to allow they give notice to him that they have decided to the contrary.

(3) If any term or condition imposed under this section is not complied with within the time therein prescribed the Corporation may themselves enter upon the building and the site thereof and carry out the work.

(4) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to rubbish or other material removed by the Corporation under this section.

(5) All expenses incurred by the Corporation under subsection (3) of this section may be recovered by the Corporation from the person who has given notice under subsection (1) of this section or on whose behalf such notice has been given.

(6) The person by whom or on whose behalf notice has been given under subsection (1) of this section shall be deemed to be the "owner of the premises" for the purposes of section 291 of the Act of 1936 as applied by this Act.

PART III
—cont.

(7) Any expenses or any part of the expenses incurred in pursuance of this section in the shoring up of a building not entitled to support from the building to be demolished or taken down may be recovered by the person by whom or on whose behalf notice has been given under subsection (1) of this section or the Corporation (as the case may be) from the owner of the building to be shored up.

(8) In any case where the Corporation in pursuance of subsection (1) of this section require the shoring up of adjacent buildings they shall give notice to the owner thereof of their requirements.

(9) This section shall not apply to—

(a) any poultry-house greenhouse coal-shed tool-shed or cycle-shed temporary garage or other similar structure; or

(b) any building belonging to any statutory undertakers or the commission and held by them for the purposes of their undertaking:

Provided that the exemption conferred by paragraph (b) of this subsection shall not extend to houses or to buildings last used before demolition as offices or showrooms other than buildings so used which form part of a railway station.

(10) If any person contravenes the provisions of this section or of any term or condition imposed under this section he shall be liable to a fine not exceeding five pounds.

(11) Any person aggrieved by the terms or conditions imposed by the Corporation under this section may appeal to a magistrates' court.

(12) Where any person proposes to demolish or take down any building or part thereof in pursuance of a demolition order made by the Corporation under section 17 section 28 or section 72 of the Housing Act 1957 or a clearance order made by the Corporation under section 44 or section 50 of the said Act he shall not be required to give notice of his intention to do so under subsection (1) of this section but he shall comply with such terms and conditions as the Corporation may require under the said subsection (1) being terms and conditions which are specified in a notice served on the owner (within the meaning of the said Act) of the building at the same time as or within seven days of the service by the Corporation on him of a copy of the demolition order or clearance order required by section 19 or by subsection (2) of section 72 or by paragraph 5 of the Fourth Schedule to the said Act as the case may be.

16.—(1) Where the Corporation are satisfied that—

PART III

—cont.

(a) any house in the borough or the roof of any building in the borough is in such a state (in this section referred to as a “defective state”) as to be prejudicial to health or a nuisance; and

Defective premises.

(b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to such house or building (in this section referred to as “the premises”) the procedure prescribed in sections 93 to 95 of the Act of 1936;

the Corporation may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the Corporation intend to remedy the defective state of the premises themselves and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the Corporation have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the Corporation stating that he intends to remedy the defective state of the premises and if such person having duly served such counter-notice commences within such time thereafter as the Corporation consider reasonable to execute such works and take such steps as may be necessary to remedy such defective state and so long as he progresses to the satisfaction of the Corporation with the execution of such works and the taking of such steps the Corporation shall not take action under subsection (3) of this section in respect of such premises.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the Corporation may execute such works and take such steps as may be necessary to remedy the defective state of the premises to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

(i) the alleged defective state did not exist at the time of the service of the notice; or

(ii) the need to abate the defective state was not so urgent as to justify the Corporation themselves executing such

PART III
—cont.

works and taking such steps without first complying with the provisions of section 93 and section 94 of the Act of 1936; or

- (iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the premises.

(b) A person against whom proceedings are taken under subsection (3) of this section (hereafter in this section referred to as “the original defendant”) shall upon complaint duly made by him and on giving to the Corporation not less than three clear days’ notice of his intention be entitled to have any person to whose default or sufferance he alleges that the defective state of the premises was due brought before the court in the proceedings and if the original defendant proves that the defective state of the premises arose or continued by the default or sufferance of that other person the court shall have power—

- (i) to order that such expenses as aforesaid may be recovered from that other person; or
- (ii) to apportion the expenses between persons by whose defaults or sufferances the defective state of the premises arose or continued in such manner as the court may deem fair and reasonable.

(c) Where the original defendant seeks to avail himself of the provisions of paragraph (b) of this subsection—

- (i) the Corporation as well as the person to whose default or sufferance the original defendant alleges that the defective state of the premises is due shall have the right to cross-examine the original defendant if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence; and
- (ii) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(5) The Corporation may if they think fit exercise the powers of this section in relation to such defects in the premises as may be specified in the notice notwithstanding the fact that other defects may exist in such premises and in that case nothing contained in this section or done or executed thereunder shall prejudice or affect the powers of the Corporation under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in such premises.

(6) The powers and functions of the Corporation under this section may be exercised by the medical officer or the public health inspector.

PART III
—cont.

17. Section 34 (As to defective drains etc.) of the Act of 1948 shall have effect as if for subsection (1) of that section there was substituted the following subsection:—

Amendment
of section 34
of Act of
1948.

“(1) In any case where it appears to the surveyor the medical officer or the public health inspector that any drain private sewer water-closet or soil pipe or any water pipe connected to the flushing apparatus of a water-closet or any waste pipe connected to a sink is stopped up or obstructed or that any water-closet is so defective as to be prejudicial to health or a nuisance the surveyor the medical officer or the public health inspector shall give notice to the owner or occupier of the premises to remove the stoppage or obstruction or to remedy the defect and if such notice is not complied with within forty-eight hours from the service thereof the Corporation may carry out the work necessary to remove the stoppage or obstruction or to remedy the defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier :

Provided that the Corporation shall not be entitled under this section to recover from any such owner or occupier expenses in respect of that part of any such drain sewer water-closet or pipe which is situated in land or on premises to which such owner or occupier has no right of access ”.

18.—(1) Where it appears to the surveyor that a structure in the borough or any part of such structure is in such a state as to require treatment for the removal of any immediate danger he may on behalf of the Corporation take such steps as may be necessary to remove the immediate danger and any steps so taken and any expenses thereby incurred shall for the purposes of this section be deemed to have been taken and incurred by the Corporation.

Dangerous
structures.

(2) Before exercising the powers of this section in respect of a structure the surveyor shall give notice of his intention so to do to the owner and occupier thereof:

Provided that the surveyor shall not be required to give notice to an owner or occupier if after reasonable inquiry he is unable to ascertain the name and address of such owner or occupier.

PART III
—cont.

(3) The Corporation may recover from the owner of the structure any expenses incurred under this section but without prejudice to the right of the owner to recover the amount of the said expenses from any person liable to pay the expenses of the repair of the structure.

(4) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

(a) the alleged immediate danger did not exist; or

(b) the need to remove the danger was not so urgent as to justify the surveyor in taking or in authorising the taking of such steps in lieu of action being taken under the provisions of section 75 of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or section 58 of the Act of 1936.

(5) (a) Where for the purpose of removing any danger the surveyor has in the exercise of his powers under this section damaged or demolished any building the owner thereof may apply to a magistrates' court to determine whether the surveyor was justified in so doing.

(b) In any case in which the court determines that the surveyor was not so justified the owner of such building shall be entitled to be paid compensation by the Corporation.

(c) The amount of any compensation payable under paragraph (b) of this subsection shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

(6) Nothing in this section shall authorise the surveyor to interfere with any structure (not being a house or a building used as offices or showrooms) belonging to the commission and held by them for the purposes of their undertaking without first giving to the commission reasonable notice of his intention to do so.

(7) In this section the expression "structure" includes any building or wall or other erection and anything affixed to or projecting from any building or wall or other erection.

Recovery of
expenses of
watching etc.
dangerous
and dilapidated
structures

19.—(1) Where it appears to the surveyor that a structure or any part of a structure in the borough is in such a condition as to be dangerous to persons in such structure or in any adjoining premises or using any street upon which such structure abuts the surveyor may until—

(a) any order made by a magistrates' court under section 58 of the Act of 1936 in respect of such structure shall have been complied with or executed; or

(b) the structure shall have been dealt with in pursuance of section 18 (Dangerous structures) of this Act or section 75 of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875;

employ and pay watchmen and do all such other acts as may be necessary to watch such structure and the Corporation may recover the expenses reasonably incurred by the surveyor in so doing from the owner of the structure:

Provided that the surveyor shall forthwith give to the owner of any structure notice that he proposes to employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such structure.

(2) In this section the expression “structure” has the same meaning as in section 18 (Dangerous structures) of this Act.

20.—(1) Any expenses incurred by the Corporation under subsection (1) of section 23 or subsection (3) of section 44 of the Housing Act 1957 in respect of which judgment has been obtained under subsection (4) of the said section 23 together with any costs allowed by the court and interest accrued thereon shall until recovered be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein.

Expenses of
executing
demolition
orders etc.

(2) The Corporation shall for the purpose of enforcing a charge under this section have all the same powers and remedies under the Law of Property Act 1925 and otherwise as if they were mortgagees by deed having powers of sale and lease of accepting surrenders of leases and of appointing a receiver.

21. Section 30 (As to neglected sites) of the Act of 1948 shall have effect as if for subsection (4) of that section there were substituted the following subsections:—

Amendment
of section 30
of Act of
1948.

“(4) Subject to the provisions of subsection (5) of this section any expenses incurred by the Corporation in the exercise of their powers under subsection (3) of this section may be recovered by them from the owner of the neglected site.

(5) Where the Corporation sell any rubbish under this section they shall either—

(a) pay the proceeds to the person to whom the rubbish belonged after deducting the amount of any expenses incurred by them in connection with the removal of the rubbish; or

PART III
—cont.

(b) deduct the amount of the proceeds from any expenses recoverable by them under subsection (4) of this section;

as the case may require.”

Maintenance
of forecourts
to which
public have
access.

22.—(1) Where the forecourt of any premises abutting upon a street in the borough is unfenced and is habitually used or is open to use by the public as part of the footway of such street the Corporation may by notice require the owner or occupier of the forecourt to carry out such work as may be necessary to make good any want of repair to the forecourt or to remove any source of danger to persons using the forecourt.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that—

(a) for the purposes of paragraph (c) of subsection (3) of the said section 290 if the owner or occupier of a forecourt in respect of which a notice has been served under subsection (1) of this section elects to fence the forecourt and informs the Corporation of his intention to do so the effective fencing of the forecourt so as to prevent its use by the public shall be a reasonable alternative work;

(b) the Corporation may remit in whole or in part as they may think fit the amount of any expenses incurred by them in executing works under subsection (6) of the said section 290.

Height of
chimneys.

23. Section 10 of the Clean Air Act 1956 in its application to the borough shall have effect as if for the reference in subsection (1) thereof to plans deposited in accordance with building byelaws there were included a reference to plans deposited in accordance with any local enactment from time to time in force in the borough.

Provision of
bathrooms.

24.—(1) Where plans of a dwelling have been deposited with the Corporation in pursuance of any local enactment from time to time in force in the borough the Corporation may reject the plans if they do not show that the dwelling will be provided with a bathroom containing a fixed bath or shower.

(2) If the Corporation reject the plans under this section the notice given in pursuance of the relevant local enactment from time to time in force in the borough shall specify this section as that under the authority of which the plans have been rejected.

PART III
—cont.

Refuse

25. The prohibition on the sorting over or disturbing of material in subsection (3) of section 76 of the Act of 1936 shall apply in respect of material deposited in any place in the borough used by the Corporation for the deposit of refuse whether provided by the Corporation or not.

Control of
Corporation's
refuse tips.

26.—(1) In this section—

the expression “dustbin” means a dustbin or ashbin provided by the Corporation in exercise of their powers under subsection (3) of section 75 of the Act of 1936 or under section 108 of the Act of 1925 and includes the cover of the dustbin or ashbin; and

Care of
dustbins
provided by
Corporation.

the expression “premises served” in relation to a dustbin means the premises at which such dustbin is placed by the Corporation for the reception of house refuse.

(2) If any person without the consent of the Corporation removes a dustbin from the premises served or wilfully interferes with such dustbin he shall be liable to a fine not exceeding forty shillings and the court by which he is convicted may in addition to imposing a fine by order require him to pay to the Corporation the costs and expenses incurred by them in replacing or repairing the dustbin as the case may be.

(3) All dustbins shall remain the property of the Corporation.

Food

27.—(1) As from the appointed day where the slaughter of an animal intended for human consumption shall take place outside a slaughterhouse and the carcase of the animal shall be brought into a slaughterhouse within the borough such carcase and all the organs thereof shall be retained and kept apart from any other meat intended for human consumption until such carcase and organs have been inspected or their removal has been authorised in accordance with the provisions of the Public Health (Meat) Regulations.

Animals
slaughtered
outside
slaughter-
houses.

(2) If the provisions of this section are contravened the occupier of the slaughterhouse and also the person by whom the carcase is prepared or dressed shall be liable to a fine not exceeding ten pounds.

PART III
—cont.

(3) In this section the following expressions have the meanings hereby assigned to them :—

“ Public Health (Meat) Regulations ” means the Public Health (Meat) Regulations 1924 to 1952 as continued in force and having effect by virtue of subsection (2) of section 136 of and the Twelfth Schedule to the Food and Drugs Act 1955 or as amended under section 13 of that Act and includes any regulations made under the said section 13 which replace those regulations;

“ animal ” and “ meat ” have the same meanings as in the Public Health (Meat) Regulations;

“ slaughterhouse ” has the same meaning as in section 135 of the Food and Drugs Act 1955.

PART IV

FIRE PRECAUTIONS

Fireman's
switches for
luminous
signs.

28.—(1) Any luminous tube sign or other similar apparatus requiring the transforming of electrical energy to a higher voltage fitted externally or internally on or in any premises in the borough other than such apparatus which is fitted internally in any premises and is attended when in operation shall be provided with a cut-off switch on the lower voltage side of the transforming apparatus.

(2) Before any apparatus to which subsection (1) of this section applies is fitted on or in any premises in the borough the owner or occupier of the premises shall at least fourteen days before the work of fitting the apparatus is begun give notice to the Corporation that such apparatus is about to be fitted indicating the position in which it is proposed that the cut-off switch required under subsection (1) of this section will be placed and in the case of any such apparatus to be fitted internally in any premises shall inform the Corporation of the pattern of the cut-off switch which it is proposed to provide.

(3) The owner or occupier of the premises in respect of which notice is given under subsection (2) of this section shall place the cut-off switch so that it is readily recognisable by and accessible to firemen and for that purpose shall comply so far as it is reasonable to do so with any representations made by the Corporation within ten days of receipt by them of such a notice and in the case of any such apparatus to be fitted internally in any

premises the work of fitting the apparatus shall not be begun until the pattern and position of the cut-off switch have been approved by the Corporation:

PART IV
—cont.

Provided that—

- (a) any question arising under this subsection between the Corporation and the owner or occupier of any premises as to the extent to which it would be reasonable for that owner or occupier to comply with the representations made by the Corporation may on the application of the owner or occupier (as the case may be) be determined by a magistrates' court; and
- (b) where the pattern and position of any cut-off switch to be provided in connection with such apparatus to be fitted internally in any premises complies with the provisions of the Institution of Electrical Engineers' Regulations the pattern and position shall be deemed to have been approved by the Corporation.

(4) The provisions of this section shall not prejudice or affect the requirements of the Electricity (Supply) Regulations 1937 or any regulations or other provisions amending or replacing the same.

(5) The owner or occupier of any premises—

- (a) to which any apparatus to which subsection (1) of this section applies is fitted in contravention of the provisions of that subsection; or
- (b) who contravenes the provisions of subsection (2) or subsection (3) of this section;

shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding two pounds.

(6) This section shall not apply to premises or any part of premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

Provided that where any luminous tube sign or apparatus to which but for this subsection subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or occupier thereof shall before such apparatus is fitted give notice to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

29.—(1) Where plans for the erection of a building have been deposited with the Corporation in pursuance of any local enactment from time to time in force in the borough and the plans show that the building will not be provided with such means of

Precautions
against fire in
certain
buildings.

PART IV
—cont.

access for fire brigade appliances and personnel as they may consider necessary to enable effective action to be taken by them in case of fire at such building the Corporation shall reject the plans.

(2) If the Corporation reject the plans under this section the notice given in pursuance of the relevant local enactment from time to time in force in the borough shall specify this section as that under the authority of which the plans have been rejected.

(3) Any question arising under this section between the Corporation and a person by whom or on whose behalf the plans are deposited as to whether the plans show that the building will be provided with the necessary access for fire brigade appliances and personnel may on the application of that person be determined by a magistrates' court.

Further provisions as to disused petroleum vessels.

30. Subsection (3) of section 68 (Disused petroleum vessels) of the Act of 1937 shall have effect as if there were inserted at the end thereof the words "and the Corporation may take such steps as may be reasonably necessary to prevent danger from the tank or other fixed container to which the warning relates and may recover from such person the expenses incurred by them in so doing".

Parts of buildings used for storage of inflammable substances.

31.—(1) (a) Where—

(i) (A) part of a building in the borough is used for the storage for the purpose of sale or trade of any substance to which this section applies; and

(B) that part of such building is also used as a habitable room or a place in which any person works or any other part of such building which communicates directly or indirectly with or is adjacent to or constructed at a level higher than the first-mentioned part is so used; and

(ii) either—

(A) such storage is in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building for the purpose mentioned in sub-paragraph (i) (B) of this paragraph; or

(B) such storage is in such manner as to be liable to cause fire or explosion;

the Corporation may by order apply the following provisions of this section to the part of the building so used for storage.

(b) An order made under the foregoing paragraph shall come into force on such date (not being earlier than three months after the date on which notice of the making of the order is given

pursuant to paragraph (d) of this subsection) as may be specified in the order or if an appeal is lodged against the order pursuant to paragraph (e) of this subsection on such later date as may be specified by the court.

PART IV
—cont.

(c) The Corporation shall revoke any such order by a further order if at any time the part of the building to which the first-mentioned order relates and every other part of the building which communicates directly or indirectly with or is adjacent to or constructed at a level higher than the part of the building to which the order relates ceases to be used as a habitable room or place in which any person works and notice thereof shall have been given to the Corporation.

(d) Notice of every order made under this section shall be given to the owner of the building and to the occupier of the part of the building to which the order relates.

(e) Any person on whom notice of the making of an order under paragraph (a) of this subsection is so served may appeal to a magistrates' court against the making of the order on the ground that it is not within the powers conferred on the Corporation by the said paragraph (a).

(f) An order under paragraph (a) of this subsection shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(2) The Corporation may by notice require the occupier of any part of a building to which an order made under subsection (1) of this section for the time being relates to provide within such reasonable period as may be specified in the notice—

(a) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the part of the building used for such storage;

(b) means of ready escape in case of fire from any part of the building used as a habitable room or place in which any person works and which communicates directly or indirectly with or is adjacent to or constructed at a level higher than the part of the building used for such storage and from the part of the building used for such storage; and

(c) notices in or on the part of the building used for such storage indicating the existence of danger from fire.

(3) The occupier of any building who—

(a) by reason of a restriction affecting his interest in the building is precluded from executing works for the purpose of complying with any notice given by the Corporation under this section; or

(b) considers that the owner of the building or any other person having an interest therein should contribute

PART IV
—cont.

towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such notice or (as the case may be) to direct the owner of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) Upon compliance with any notice given under subsection (2) of this section the Corporation shall forthwith issue to the occupier to whom such notice has been given a certificate specifying precisely and in detail—

- (a) the matters provided by the occupier in compliance with the notice; and
- (b) the maximum number of persons inhabiting or working in or proposed to inhabit or work in any part of the building to which sub-paragraph (i) (B) of paragraph (a) of subsection (1) of this section applies.

(5) After the expiration of the period specified in any notice given by the Corporation under subsection (2) of this section a person shall not use or permit to be used the part of the building to which the notice relates for the storage for the purpose of sale or trade of any inflammable substance to which this section applies unless the building is certified by the Corporation to comply with the requirements specified in the notice and the matters provided by the occupier in compliance with the notice are adequately maintained.

(6) If after the grant of a certificate for the purpose of this section with regard to any part of a building the occupier thereof proposes—

- (a) to make any material extension or material structural alteration of any part of that building; or
- (b) to increase materially the number of persons inhabiting or working in any part of that building; or
- (c) to increase materially the extent of the storage for the purpose of sale or trade of any substance to which this section applies or to store any substances other than those in respect of which the certificate was granted and which will increase the risk of fire in that part of that building;

the occupier shall give notice to the Corporation of the proposal.

(7) The Corporation may from time to time upon giving notice thereof to such persons as are mentioned in paragraph (d) of subsection (1) of this section alter or revoke any certificate issued by them under this section and such alteration or revocation shall come into force on such date (not being earlier than one month after the date on which such notice is given) as may be specified in the notice or if an appeal is lodged against such alteration or revocation under subsection (8) of this section on such later date as may be specified by the court.

(8) (a) Any person aggrieved by a requirement of the Corporation under subsection (2) of this section may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement is not justified by the terms of this section;
- (ii) that the requirement is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the Corporation to grant a certificate under this section or by any alteration or revocation of such a certificate may appeal to a magistrates' court.

(9) If any person contravenes the provisions of this section he shall be liable—

- (a) in the case of a contravention of subsection (5) of this section to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds; and
- (b) in the case of a contravention of subsection (6) of this section to a fine not exceeding five pounds.

(10) This section applies to—

- (a) any substance which is gaseous at a temperature of thirty-three degrees Fahrenheit at atmospheric pressure and which is inflammable; and
- (b) any other substance which when tested by a method approved by the Secretary of State gives off an inflammable vapour at a temperature of less than one hundred and fifty degrees Fahrenheit:

Provided that the Corporation shall not make any requirement under this section with respect to any building in which no such substance is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act 1928 apply; or

PART IV
—cont.

- (ii) any substance which does not give off an inflammable vapour at a temperature of less than ninety degrees Fahrenheit and which is stored in securely closed metal containers in good condition and containing not more than five gallons each.

(11) In this section the expression “building” where used in relation to the storage of substances therein includes the curtilage of the building.

(12) Nothing in this section shall empower the Corporation to require as regards any building while used in part as a factory within the meaning of the Factories Act 1937 means of escape in case of fire to be provided from or in respect of the part of such building so used if a certificate under section 34 of that Act in respect of that part is in force or the factory or part thereof is entitled under that section to receive a certificate for the purposes of that section.

PART V

WEIGHTS AND MEASURES

Interpretation
of Part V.

32. In this Part of this Act unless the subject or context otherwise requires the following expressions have the following meanings:—

“briquette” means solid fuel manufactured mainly from coal each whole briquette being not less than one pound in weight;

“coke” includes any solid fuel derived from coal or of which coal or coke is a constituent and includes briquettes;

“vehicle” includes any lorry cart handcart waggon truck or other means of conveying goods or commodities by land but does not include a railway truck or waggon;

“weighing-machine” except in respect of section 33 (Amendment of section 65 of Act of 1937) of this Act means a weighing-machine available for the use of the public for the purpose of ascertaining the weight of any vehicle or the load thereof.

Amendment of
section 65 of
Act of 1937.

33. Subsection (3) of section 65 (As to personal weighing-machines) of the Act of 1937 shall have effect as if—

(a) after the words “has been marked with a distinguishing mark by such inspector” there were inserted the words “or unless it has been stamped by an inspector of weights and measures in pursuance of the Weights and Measures Acts 1878 to 1936”; and

(b) there were inserted at the end of such subsection the words “Provided that the provisions of this subsection

shall not apply to a personal weighing-machine owned by a travelling showman and used or exposed for use by him at a pleasure fair if at any time within the three months preceding such use or exposure for use such weighing-machine has been examined and approved and marked by any inspector of weights and measures appointed under the Weights and Measures Acts 1878 to 1936 ”.

PART V
—cont.

34.—(1) If any person in the borough—

- (a) sells or delivers or makes up or exposes for sale or delivery by weight or measure; or
- (b) sells or delivers or sets apart keeps or exposes for sale or delivery in numbers;

Deficient
weight
measure or
number.

any article or articles of which the weight measure or number (as the case may be) is less than the weight measure or number thereof which has been represented by such person he shall be guilty of an offence and shall be liable to a fine not exceeding for a first offence five pounds and for any subsequent offence ten pounds.

(2) Any inspector of weights and measures of the Corporation on production if required of his authority under the Weights and Measures Acts 1878 to 1936 may at all reasonable times—

- (a) enter any building or other place in the borough in which he has reasonable cause to believe that any article is sold or is made up or exposed for sale by weight or measure or that any articles are sold or are set apart or kept or exposed for sale in numbers; or
- (b) inspect any vehicle which he has reasonable cause to believe is carrying articles for sale or delivery by weight or measure or in numbers in the borough; or
- (c) stop any person who he has reasonable cause to believe is carrying or in charge of any basket or other receptacle from which articles are sold or delivered by weight or measure or in numbers or in which such articles are kept or exposed for sale or delivery in the borough;

and weigh measure or number any such article or articles or require any such article or articles to be weighed measured or numbered in his presence.

(3) If the inspector of weights and measures has reasonable cause to believe that the weight measure or number of any such article or articles is less than the weight measure or number thereof which has been represented by the person who has sold delivered or made up set apart kept or exposed the same for sale or delivery he may for the purposes of proceedings under subsection (1) of this section seize impound and convey such article or articles to an office provided for the purpose by the Corporation.

PART V
—cont.

(4) For the purposes of section 288 of the Act of 1936 as applied by this Act action wilfully taken by the driver or person in charge of any vehicle to avoid inspection of the vehicle by an inspector of weights and measures under this section by driving away or increasing speed when approached by such inspector shall be deemed to be obstruction.

(5) In any proceedings under this section in respect of an alleged deficiency of weight or measure of any prepacked article the court shall disregard any inconsiderable variation in the weight or measure of a single article and shall have regard to the average weight or measure of a reasonable number of other articles of the same kind (if any) sold or delivered by the defendant or in his possession for the purpose of sale or delivery on the same occasion and generally to all the circumstances of the case.

(6) In any proceedings under this section in respect of an alleged deficiency of weight or measure or number it shall be a defence for the defendant to prove to the satisfaction of the court either—

- (a) that such deficiency was due to a bona fide mistake or accident or other causes beyond his control and that he took all reasonable precautions and exercised all due diligence to prevent the occurrence of such deficiency; or
- (b) that the alleged deficiency was due to unavoidable evaporation or drainage and that due care and precaution had been taken to avoid such deficiency; or
- (c) in case of a prepacked article that he purchased the article in the wrapper or container in which he sold it from a person carrying on business at an address in the United Kingdom and that the wrapper or container had remained unopened and that he had no reason to believe that this section was being contravened.

(7) A person against whom proceedings are brought in respect of an offence against this section (hereafter in this section referred to as “the original defendant”) shall upon information duly laid by him and on giving to the prosecution not less than three clear days’ notice of his intention be entitled to have any other person to whose act or default he alleges that the offence was due brought before the court in the proceedings and if after the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence and if the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with he shall be acquitted of the offence.

(8) Where the original defendant seeks to avail himself of the provisions of the last foregoing subsection—

- (a) the prosecution as well as the person whom the original defendant charges with the offence shall have the right to cross-examine him if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(9) Where it appears to the Corporation that an offence has been committed in respect of which proceedings might be taken under this section against some person and the Corporation are reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the first-mentioned person could establish a defence under subsection (7) of this section they may cause proceedings to be taken against that other person without first causing proceedings to be taken against the first-mentioned person. In any such proceedings the defendant may be charged with and on proof that the contravention was due to his act or default be convicted of the offence with which the first-mentioned person might have been charged.

(10) A prosecution in respect of an offence by a retailer under this section other than an offence of obstructing or hindering an inspector in the exercise of his duties shall not be instituted after the expiration of twenty-eight days from the time when the offence was committed nor unless within seven days after the alleged commission of the offence notice of the date and nature of the alleged offence has been served on or sent by registered post to the defendant nor unless in the case of any alleged deficiency the person against whom the allegation is made has been given reasonable opportunity to check the weight measure or number of the article or articles in respect of which such allegation is made.

(11) A prosecution under this section shall not be instituted except by or on behalf of the Director of Public Prosecutions or the Corporation.

(12) The provisions of this section shall not apply to the sale of coal or coke nor to any article of food to which section 1 of the Sale of Food (Weights and Measures) Act 1926 applies.

(13) In this section the expression “prepacked article” means any article which is packed or made up in advance ready for retail sale in a wrapper or container and where any article packed or made up in a wrapper or container is found on any premises where such articles are packed kept or stored for sale the article shall be deemed to be prepacked unless the contrary is proved.

PART V
—cont.

Drivers of
vehicles to
take them to
weighing-
machines on
request.

35.—(1) The driver of any vehicle loaded with any goods (including coal or coke) to be sold in the borough by reference to the weight of such loaded vehicle shall at the request of the buyer or seller of any such goods or the person on whose behalf the same shall be consigned or of any of their respective agents or of an inspector of weights and measures of the Corporation take such vehicle with or without the load carried thereon to be weighed or reweighed at the nearest suitable and available weighing-machine stamped by an inspector of weights and measures.

(2) If the nearest suitable and available weighing-machine to which such vehicle shall be required to go for weighing or reweighing is not on the regular course of the road by which it would otherwise be necessary for the vehicle to pass the owner of the vehicle shall be paid sixpence for every half-mile beyond the first half-mile of the extra distance which the vehicle is required to go under this section.

(3) All charges for carriage made under subsection (2) of this section together with the tolls or fees to be paid for weighing or reweighing any such vehicle shall be paid by the person requiring the same to be weighed and such charges for carriage shall if demanded be paid before the driver of such vehicle shall be obliged to go out of his way for the purpose of having the same weighed.

(4) The driver of any such vehicle who shall not upon being requested and paid such charges as aforesaid (if demanded) take such vehicle to the weighing-machine to which he is required to go shall be liable to a fine not exceeding ten pounds and the driver of any such vehicle who in any manner obstructs or hinders the person requiring the weighing or reweighing of the same in ascertaining the correct weight of such vehicle with or without the load carried thereon shall be liable to a fine not exceeding five pounds.

(5) Section 27 of the Weights and Measures Act 1889 shall cease to apply to the borough.

(6) In this section the expression "driver" includes the owner and any person in charge of any vehicle.

Prohibition
of double
weighing.

36.—(1) It shall not be lawful to use a weighing-machine to ascertain the gross or tare weight of any vehicle or combination of vehicles unless the weighing-machine has a platform or platforms of sufficient size to accommodate completely such vehicle or combination of vehicles and is of sufficient capacity to permit of the weighing of such vehicle or combination of vehicles when so accommodated on the platform or platforms:

Provided that—

PART V
—cont.

- (a) it shall not be a contravention of this section to weigh a vehicle or combination of vehicles otherwise than in accordance with the provisions of this section if at the time of weighing there is not available in the borough a weighing-machine of such size and capacity as aforesaid;
- (b) when the gross or tare weight of a combination of vehicles has to be ascertained it shall not be a contravention of this section if each vehicle shall be entirely disconnected and weighed separately and a weight certificate issued in respect of each separate vehicle.

(2) If any person who keeps or acts as keeper of a weighing-machine contravenes the provisions of this section he shall be liable to a fine not exceeding for a first offence five pounds and for any subsequent offence ten pounds.

37.—(1) Notwithstanding anything to the contrary in this Part of this Act ^{Sale of} briquettes may be sold by number and the following provisions shall apply to briquettes which are sold or intended to be sold within the borough by number instead of the provisions of section 46 (Application to sale of coke of Weights and Measures Act 1889) and section 48 (Application of Part VIII of Act) of the Act of 1937 and section 91 (As to sale of coal or coke otherwise than in sacks from a vehicle) of the Act of 1948:—

- (a) If any seller delivers or causes to be delivered to the purchaser or his agent a less number of briquettes than is purported to be sold he shall be liable to a fine not exceeding for a first offence five pounds and for any subsequent offence ten pounds;
- (b) (i) Where more than twenty-five briquettes are delivered by means of a vehicle to a purchaser the seller shall therewith deliver or cause to be delivered to the purchaser or his agent before any of the briquettes are unloaded a ticket or note stating in legible figures the number of briquettes upon which the purchase price is based;
- (ii) If default is made in complying with the requirements of this paragraph with respect to the delivery of a ticket or note or if the number is less than the number expressed in the ticket or note the seller of the briquettes or the person in charge of the vehicle (as the case may be) shall be liable to a fine not exceeding for a first offence five pounds and for any subsequent offence ten pounds;
- (iii) If any person attending on any such vehicle having received any such ticket or note for delivery to the

PART V
—cont.

purchaser fails to deliver it as required by this paragraph or on being requested so to do to exhibit it to any inspector of weights and measures of the Corporation he shall be liable to a fine not exceeding for a first offence five pounds and for any subsequent offence ten pounds;

- (c) (i) Every person who sells or offers or exposes for sale any briquettes shall cause his name and place of business and residence to be registered with the Corporation and on each occasion on which he shall change his registered place of business or residence he shall within seven days thereafter cause particulars of such change to be registered with the Corporation;
- (ii) If any person contravenes the provisions of this paragraph he shall be liable to a fine not exceeding five pounds.

(2) A seller or other person against whom proceedings are brought in respect of an offence against this section (hereafter in this section referred to as "the original defendant") shall upon information duly laid by him and on giving to the prosecution not less than three clear days' notice of his intention be entitled to have any other person to whose act or default he alleges that the offence was due brought before the court in the proceedings and if after the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence and if the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with he shall be acquitted of the offence.

(3) Where the original defendant seeks to avail himself of the provisions of the last foregoing subsection—

- (a) the prosecution as well as the person whom the original defendant charges with the offence shall have the right to cross-examine him if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(4) Where it appears to the Corporation that an offence has been committed in respect of which proceedings might be taken under this section against some person and the Corporation are reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the first-mentioned person could establish a defence under subsection (2) of this section they may cause proceedings to be

taken against that other person without first causing proceedings to be taken against the first-mentioned person. In any such proceedings the defendant may be charged with and on proof that the contravention was due to his act or default be convicted of the offence with which the first-mentioned person might have been charged.

PART V
—cont.

38. Section 4 of the Weights and Measures Act 1889 (which provides that persons convicted of offences shall be liable to imprisonment in cases of fraud) shall extend and apply to convictions under—

Application of
Weights
and Measures
Act 1889.

- (a) sections 20 to 26 and 29 of that Act as extended to coke by section 46 of the Act of 1937;
- (b) section 91 (As to sale of coal or coke otherwise than in sacks from a vehicle) of the Act of 1948; and
- (c) the following sections of this Act:—
 - section 34 (Deficient weight measure or number);
 - section 36 (Prohibition of double weighing);
 - section 37 (Sale of briquettes).

PART VI

TRANSPORT

39.—(1) Subsection (2) of section 113 (Carriage of parcels) of the Act of 1948 shall have effect as if for the words “charges not exceeding such maximum charges as may from time to time be approved by the Minister of Transport” there were inserted the words “such charges as they may think fit”.

Amendments
of section 113
of Act of
1948.

(2) Subsections (6) and (7) of the said section 113 are hereby repealed.

PART VII

WATER

40. Where in pursuance of section 37 of the Water Act 1945 the owner of any land requires the Corporation to construct any works for the purpose of affording a supply to any new buildings which he proposes to erect the Corporation instead of requiring the owner to give an undertaking to pay in respect of each year such sum as is provided in paragraph (a) of the proviso to subsection (1) of the said section 37 may agree with him for the payment by him to the Corporation of a sum in composition of any liability to make annual payments which he would incur if such an undertaking were given.

Guarantees in
respect of
supplies for
new buildings.

41. Section 37 of the Water Act 1945 as amended by section 46 of the Housing Act 1949 shall in its application to the Corporation have effect as if in the proviso to subsection (1) the words

Amendment
of section 37
of Water Act
1945.

PART VII
—cont.

“ and providing and installing any new or modifying any existing pumping plant ” were inserted after the words “ laying the necessary mains ” in paragraph (a) and the words “ and providing and installing or modifying the pumping plant ” were inserted after the words “ laying the mains ” in paragraph (b).

Obstructions
to stopcocks
valves and
indicator
boards etc.

42. Where any person has—

- (a) covered over any stopcock or valve or has otherwise obstructed the means of access to any stopcock or valve; or
- (b) caused or permitted any stopcock or valve to be covered over or the access thereto to be obstructed; or
- (c) covered over damaged or removed any identification mark plate post or board installed by the Corporation for the location of any stopcock or valve or any support thereto; or
- (d) caused or permitted any such identification mark plate post or board or support to be covered over damaged or removed;

the expense incurred by the Corporation in uncovering the stopcock or valve or removing the obstruction or uncovering repairing or replacing the identification mark plate post board or support shall be paid to the Corporation by that person and may be recoverable by the Corporation as a simple contract debt in any court of competent jurisdiction or in the case of any amount not exceeding twenty pounds summarily as a civil debt.

PART VIII

FINANCE

Power to
borrow.

43.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum requisite for paying the costs charges and expenses of this Act.

(2) The Corporation shall pay off all moneys borrowed under the preceding subsection within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by the Corporation under this section for the repayment of any money borrowed thereunder shall as respects that money be the fixed period for the purpose of the said Part IX.

44. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary where it is agreed between the Corporation and the person for the time being entitled to any mortgage granted by the Corporation to extend the time for the repayment of the principal moneys secured by such mortgage or to alter the rate of interest payable by the Corporation on the principal moneys so secured and for the time being not repaid or both to extend such time and to alter such rate of interest effect may be given thereto by an endorsement in writing under the hand of the town clerk or his duly authorised representative endorsed on the deed by which such mortgage was originally granted and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall as from the date specified in such endorsement operate and take effect accordingly.

PART VIII
—cont.

As to extensions of time for repayment of and alteration of interest on mortgages.

45. Section 106 (As to proof of continued existence of pensioners) of the Act of 1948 shall have effect as if—

Amendment of section 106 of Act of 1948.

(a) for the words “ the Local Government Superannuation Acts 1937 and 1939 ” there were inserted the words “ any enactment ”; and

(b) for the words “ or pension under those Acts or under the Pensions (Increase) Acts 1944 and 1947 ” there were inserted the words “ pension compensation or other such payment under any statutory authority ”.

46.—(1) In its application to the Corporation subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest any moneys forming part of but not for the time being required to meet payments out of the superannuation fund maintained by the Corporation under that Act in securities in which trustees are authorised to invest there were substituted an obligation to invest such moneys as follows (namely):—

Investment of superannuation fund.

(a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or

(b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part thereof respectively; or

PART VIII
—cont.

- (c) in or upon any of the stocks bonds mortgages or securities of any municipality county or district council or local or public authority or board in the United Kingdom or any such dominion commonwealth union dependency colony province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or
 - (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid; or
 - (e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company incorporated under any general Act of the United Kingdom Parliament being stock or shares which are at the time of making the investment quoted on the London Stock Exchange; or
 - (f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof has at the time of making the investment at least sixty years to run; or
 - (g) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value;
- with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that no such moneys as aforesaid shall be invested in any investment of the nature specified in paragraph (e) of this subsection—

- (i) unless the company has paid a dividend of at least five per centum on the ordinary stock or shares of the company for each of the four years immediately preceding the date of investment or if the company has been incorporated or has been trading for less than four years before that date unless the company has paid such dividend for each of the years since incorporation or commencement of trading as the case may be; and
- (ii) at any time when the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.

(2) For the purposes of the last foregoing subsection the value of any investment of moneys forming part of the super-annuation fund shall be treated as being the value of the investment at the time at which it was made.

PART VIII
—cont.

47. Section 96 (Capital fund) of the Act of 1948 shall have effect as if—

Amendment of
section 96 of
Act of 1948.

(a) in subsection (1) the words “ (not being property of the Corporation held by them for the purposes of the passenger transport undertaking) ” were inserted after the words “ any property of the Corporation ” and the following paragraph were substituted for proviso (b):—

“ (b) when the capital fund shall amount to the sum of seventy-five thousand pounds or such greater sum as shall be generally authorised for the purposes of this section by the Minister or shall be allowed by him in any particular case the Corporation shall cease to make payments into the said fund but if the said fund is at any time reduced below the sum of seventy-five thousand pounds or such greater sum as aforesaid the Corporation may recommence and continue payments until the said fund be restored to the sum of seventy-five thousand pounds or such greater sum as aforesaid as the case may be ”;

(b) for the words “ seven thousand five hundred pounds ” in subsection (2) there were inserted the words “ twenty thousand pounds ”.

48. Section 97 (Renewal and repairs fund) of the Act of 1948 shall have effect as if in subsection (3) after the words “ fifty thousand pounds ” there were inserted where those words first occur the words “ or such greater sum as shall be generally authorised for the purposes of this section by the Minister or shall be allowed by him in any particular case ” and where those words secondly and thirdly occur the words “ or such greater sum as aforesaid ”.

Amendment of
section 97 of
Act of 1948.

49.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of any undertaking of the Corporation from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the fund so provided amounts to the maximum reserve fund for the time being prescribed by the Corporation.

Reserve funds.

(2) The reserve fund provided under this section may be applied—

(a) in making good any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed; or

PART VIII
—cont.

- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking; or
- (c) in repaying any capital moneys borrowed for the purposes of the undertaking (but not in making the annual payments required to be made therefor); or
- (d) in or towards the payment of the cost of renewing improving or extending any works buildings machinery plant or conveniences forming part of the undertaking or otherwise for the benefit thereof;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) If and when the Corporation establish a reserve fund under this section in respect of any such undertaking as aforesaid any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Corporation in respect of that undertaking and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking.

Demand
complaint
information or
summons may
contain
several sums.

50. There may be included—

- (a) in one and the same demand or in any schedule thereto any general rate and any water rate rent or charge and any charge for the supply of heat and the same books may be used for the general rate water rate rent or charge and charges for the supply of heat; and
- (b) in one and the same complaint information or summons or in any schedule thereto any general rate and any water rate rent or charge and any charge for the supply of heat:

Provided that the rates rents or charges are due and payable to the Corporation from the same person whether under the same or different enactments from time to time in force in the borough.

Power to
charge in
respect of
establishment
charges.

51. Whenever under any enactment (other than the Act of 1936) the Corporation on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum as they think fit not exceeding five per centum of the cost of the works in respect of their establishment charges.

52. Section 135 (Subscriptions to local government associations etc. and other expenses) of the Act of 1948 shall have effect as if the following paragraph were inserted therein:—

PART VIII

—cont.

Amendment of section 135 of Act of 1948.

“(e) reasonable expenses in connection with the—

(i) arrangement and conduct of ceremonies relating to or arising out of any statutory functions of the Corporation;

(ii) provision of refreshments for members of the council and representatives of local authorities and other bodies or for other persons attending conferences or meetings convened by or held under the auspices of the Corporation”.

53.—(1) The Corporation may pay to any of their officers who act in any of the following capacities:—

Officers of Corporation acting as receivers etc.

(a) as the receiver appointed by an order made under the Lunacy Act 1890;

(b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Corporation;

(c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

the amount of any sum forfeited by him to the Crown or the Principal Probate Registrar or the amount of any payment which such officer is liable to make by reason of his acting in the course of his duties as an officer of the Corporation in any such capacity as aforesaid.

(2) The Corporation may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in one of the capacities mentioned in subsection (1) of this section against any act neglect or default whether his own or that of any other person occurring in the course of the receivership or administration.

PART IX

MISCELLANEOUS

54. Section 166 of the Housing Act 1957 shall in its application to the Corporation have effect as if at the end of subsection (2) there were inserted the following:—

Amendment of section 166 of Housing Act 1957.

“(c) for the purposes of this subsection a document shall be deemed to be signed by the clerk to a local authority or his lawful deputy if a facsimile of the signature of either of such officers by whatever process reproduced is affixed to such document”.

PART IX

—cont.

Disposal of
lost and
uncollected
property.

55.—(1) Where any lost property is contained in a package bag or other receptacle the Corporation may cause such receptacle to be opened and the contents examined if they deem it necessary to do so for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(2) If any lost or uncollected property within three months of coming into the custody of the Corporation be not proved to the satisfaction of the Corporation to belong to any claimant it shall thereupon vest in the Corporation.

(3) Where any lost property becomes vested in the Corporation in pursuance of this section the Corporation may if they think fit deliver to the person whether an employee of the Corporation or not who placed the lost property in the custody of the Corporation the whole or any part of such property or of the estimated value thereof in cash.

(4) This section shall in the case of uncollected property placed in the custody of the Corporation on express terms inconsistent with the rights of the Corporation under this section have effect subject to those terms.

(5) In this section the expression “lost property” means any property coming into the custody of the Corporation after being accidentally left in any premises occupied by the Corporation to which the public have access and the expression “uncollected property” means any property deposited in any cloakroom or parcels store provided by the Corporation for the use of the public in which there is exhibited a notice containing a statement of the effect of subsection (2) of this section.

Power to make
regulations as
to hackney
carriage
fares etc.

56.—(1) The Corporation may make regulations (in lieu of byelaws) for fixing the rates or fares as well for time as distance to be paid in respect of hackney carriages plying for hire in the borough and vehicles to which the provisions of section 57 (Provisions as to motor vehicles let for hire) of this Act apply and for securing the due publication of such rates or fares.

(2) Any person who contravenes any of such regulations shall be liable to a fine not exceeding five pounds.

(3) (a) Notice of the making of such regulations shall be published twice in some newspaper circulating in the borough and the regulations shall not come into force until seven days after the date whereon the notice shall have been published for the second time or if an appeal is made until the appeal is disposed of.

(b) Either—

(i) a copy of any such newspaper containing any such notice; or

- (ii) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(4) Any person aggrieved by any of such regulations may appeal to the Secretary of State prior to such regulations coming into force and shall at the same time give to the Corporation notice in writing of the appeal and of the grounds thereof.

(5) The Secretary of State shall consider any appeal duly made to him and may make such order in the matter as he thinks fit and his decision shall be final.

(6) Section 252 of the Act of 1933 which relates to the proof of byelaws shall extend to regulations made under this section by the Corporation as the said section 252 extends to byelaws made by the Corporation.

(7) In this section the expression "hackney carriages" means vehicles licensed as hackney carriages pursuant to the Town Police Clauses Act 1847 and other vehicles (during the period of such use) which are used in circumstances in which such use would contravene the provisions of the said Act unless such vehicles were licensed as hackney carriages pursuant to the said Act.

57.—(1) In addition to their powers under the Town Police Clauses Act 1847 the Corporation may make byelaws for declaring that to the extent determined by such byelaws the provisions of that Act and the byelaws of the Corporation in force with respect to hackney carriages shall apply to every motor vehicle standing or plying for hire notwithstanding that such vehicle stands or plies for hire on private premises only:

Provisions as to motor vehicles let for hire.

Provided that—

- (a) this section shall not apply to any such vehicle which is kept by any company firm or person in connection with any business carried on by such company firm or person as funeral directors or owners of funeral vehicles available for hire and used wholly or mainly in connection with such business or is kept and used ordinarily for the purpose of being let on hire by the day or for longer periods of hire or to a public service vehicle as defined in section 39 of the Road Traffic Act 1956 or to any vehicle belonging to or used by the commission for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicles;

PART IX
—cont.

- (b) nothing in this section shall empower the Corporation to fix the site of the stand or starting place of any motor vehicle standing or plying for hire in any railway station or railway premises or in any yard belonging to the commission except with the consent of the commission.

(2) The confirming authority for the purpose of section 250 of the Act of 1933 shall as respects byelaws made under this section be the Secretary of State.

Restriction on
use of
loudspeakers
in streets.

58.—(1) No person shall for the purpose of advertising any entertainment trade or business or any part of a trade or business operate or cause or suffer to be operated any loudspeaker when such loudspeaker is in any street in the borough:

Provided that this subsection shall not apply to the operation of any loudspeaker on a vehicle constructed or adapted for use for the conveyance of any perishable commodity for human consumption (including ice-cream) where—

- (a) the loudspeaker is used in conjunction with an electrically operated instrument to produce sounds (not being words); and
(b) the main purpose of operating the said loudspeaker is to notify members of the public that the driver or other attendant of the vehicle is available to sell to members of the public the commodity conveyed by the vehicle; and
(c) the loudspeaker is not operated so as to be a nuisance.

For the purposes of this proviso “ice-cream” includes any similar commodity and the commodity known as “water ice”.

(2) No person shall between the hours of nine in the afternoon and eight in the forenoon operate or cause or suffer to be operated any loudspeaker for any purpose when such loudspeaker is in any street in the borough:

Provided that this subsection shall not apply to a loudspeaker forming part of a wireless set on or inside a motor vehicle so long as such loudspeaker is used for the private purposes of the occupants of the said vehicle or for communication with them in connection with their trade or business and is not used so as to be an annoyance or nuisance to persons in a street.

(3) Any person who contravenes any of the provisions of this section shall be liable to a fine not exceeding five pounds.

(4) This section shall not apply to—

- (a) the use of a loudspeaker by the Corporation or the police or the fire brigade in the execution of their duty or in case of emergency;
(b) the use of a loudspeaker by the commission for the purposes of announcements to their passengers or staff at any station or depot of the commission;

- (c) the use of a loudspeaker by the North Western Electricity Board or the North Western Gas Board (as the case may be) in case of emergency affecting their undertaking;
- (d) the use of a loudspeaker by any persons operating public service vehicles for the purpose of announcements to their passengers whilst in any of their vehicles or any of their stations or depots not forming part of a public highway or for communications between their staff.

PART IX
—cont.

(5) In this section the expression "loudspeaker" includes an amplifier or similar instrument.

59.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

- (a) to put and keep in order any tombstone or memorial therein;
- (b) to level any grave therein;
- (c) to remove any tombstone or memorial on any grave therein or any railings surrounding any grave therein or any such tombstone or memorial;
- (d) to alter the position of any such tombstone memorial or railings.

Extension of
power to
maintain
burial
grounds.

(2) Before exercising a power conferred by paragraph (b) (c) or (d) of the foregoing subsection the Corporation shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave or upon a relative of a deceased person whose remains are interred therein if after reasonable inquiry the name and address of the owner or of a relative of such a person can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the Corporation's proposals and specify an address at which full particulars of the proposals can be obtained unless the brief particulars are of proposals incapable of further statement;
- (b) specify a date as being that on which it is intended that the Corporation will begin to carry out the proposals which shall be a date not earlier than the fourteenth day after the date of the later of the two publications or than the twenty-first day after the date on which the notice in the burial ground is first displayed or where notice is required to be served than the twenty-first day after the date of service; and
- (c) state the effect of the next following subsection.

PART IX
—cont.

(4) If notice of objection to a proposal and of the ground thereof is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection that proposal shall not be carried out without the consent of the Minister unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate or destroy any tombstone memorial or railings removed under this section unless it or they is or are claimed within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section or where notice has been served under paragraph (c) thereof after the date of such service whichever is the later.

(6) Where a tombstone is removed under this section the Corporation may erect at their own expense in substitution a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each tombstone or memorial removed or otherwise disposed of by them in pursuance of their powers under this or the three next succeeding sections containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the tombstone or memorial a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar-General.

(8) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence and subsection (5) thereof shall not have effect in relation to any tombstone memorial or railings for whose removal such a faculty or licence was obtained.

(9) In this and the three next succeeding sections—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“tombstone” includes a kerb.

Power to use
certain burial
grounds for
building etc.

60.—(1) Notwithstanding anything in any other Act but subject to the provisions of subsections (2) to (8) of section 62 (Removal of human remains) of this Act it shall be lawful for the Corporation with the consent of the Minister to use deal with or dispose of for building or for any other purpose any closed or disused burial ground in the borough for the time being vested in them in like manner as if no part thereof had ever been used or set apart for the purpose of the burial of human remains and without prejudice to the generality of the foregoing provisions of this subsection the Corporation may exercise in respect of such closed or disused burial ground all or any of the

powers conferred upon them by section 22 (Power to develop land) of the Act of 1930:

PART IX
—cont.

Provided that in respect of a closed or disused burial ground forming the churchyard of a Church of England church whether or not there is a church standing in it still in use for public worship at the time of the proposed exercise of such powers the said powers shall not be exercised unless the sanction of a licence or faculty from the consistory court of the diocese in which the churchyard is situate is first obtained in addition to the consent of the Minister.

(2) Before erecting or causing to be erected any building on any closed or disused burial ground the Corporation shall remove or cause to be removed therefrom the remains of all deceased persons interred therein.

61.—(1) Where part of a burial ground belonging to the Corporation is disused (other parts being still used for interments) the Corporation subject to the provisions of section 11 of the Open Spaces Act 1906 may manage the disused part remove or change the position of any tombstone or memorial therein and lay out and maintain the same as a garden but the public shall not have access thereto except to such extent as the Corporation may permit.

Powers as to
disused part
of burial
ground.

(2) Where part of a burial ground in the borough not belonging to the Corporation is disused the owner (including a trustee for a charity) thereof may convey such part to or grant any term of years or other limited interest therein to or make any agreement with the Corporation for the purposes of this section and the Corporation may accept such conveyance thereof or grant of interest therein and enter into such agreement:

Provided that the Corporation shall not exercise any of the powers conferred upon them by this subsection with reference to any consecrated burial ground except subject to and in accordance with the provisions of section 11 of the Open Spaces Act 1906.

(3) Subject to the terms upon which the Corporation have acquired part of a burial ground or an interest therein and to the terms of any agreement made under this section the Corporation may exercise in such part of the burial ground the powers referred to in subsection (1) of this section.

62.—(1) In the exercise of the powers of the last foregoing section the remains of any deceased person interred in the part of the burial ground in which the powers are exercised shall not be disturbed unless the Corporation find it necessary and in that case the Corporation shall remove or cause to be removed the remains of any deceased person which have to be disturbed:

Removal of
human
remains.

Provided that the Secretary of State on the application of the Corporation may dispense with all or any of the requirements of this section on such conditions (if any) as he thinks fit.

PART IX
—cont.

(2) Before proceeding to remove any such remains as are referred to in the last foregoing section or in section 60 (Power to use certain burial grounds for building etc.) of this Act the Corporation shall publish notice of their intention so to do in a local newspaper circulating in the borough once in each of two successive weeks with an interval between each publication of not less than six clear days and display a notice in a conspicuous position in the burial ground concerned and such notice shall have embodied in it the general effect of subsections (3) (4) (5) and (6) of this section and subsection (7) of section 59 (Extension of power to maintain burial grounds) of this Act.

(3) At any time within two months after the first publication of such notice any person who is a personal representative or relative of any deceased person in respect of whose remains the Corporation have published a notice under subsection (2) of this section may give notice in writing to the Corporation of his intention to undertake the removal of such remains and any tombstone relating thereto and thereupon he shall be at liberty to cause such remains to be removed to and reinterred in any burial ground or cemetery in which burials may legally take place and to remove such tombstone:

Provided that in respect of a closed or disused consecrated burial ground of the Church of England whether or not there is a church standing in it still in use for public worship at the time of the proposed exercise of such powers the said powers shall not be exercised unless the sanction of a licence or faculty from the consistory court of the diocese in which the churchyard is situate is first obtained.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such personal representative or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese for the time being in the case of the removal of remains referred to in the last foregoing section from a Church of England burial ground or by a county court in all other cases and the said registrar or county court (as the case may be) shall have power to make an order specifying who shall remove the remains and any tombstone relating thereto.

(5) The expense of such removal and reinterment (not exceeding in respect of remains removed from any one grave and any tombstone relating thereto the sum of fifty pounds) shall be defrayed by the Corporation such sum to be apportioned if necessary equally according to the number of deceased persons whose remains have been removed from the grave.

(6) If—

(a) within the said period of two months no notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave; or

- (b) within two months after such notice as aforesaid has been given no application has been made under subsection (4) of this section and the person giving the notice under that subsection fails to remove the remains;
- (c) within two months after any order is made under subsection (4) of this section the person specified in the order fails to remove the remains;

PART IX
—cont.

the Corporation may remove the remains of the deceased person and cause them to be reinterred in a burial ground or cemetery in which burials may legally take place as the Corporation think suitable for the purpose subject in the case of remains referred to in the last foregoing section removed from a Church of England burial ground to the previous authority of a licence or faculty from the consistory court of the diocese.

(7) Any jurisdiction or power conferred on a county court by this section may be exercised by the registrar of the court.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer.

63.—(1) The Corporation may for the purpose of enabling them to perform any of their functions under—

Power to
require
information as
to ownership
of premises.

- (a) any enactment in force at the passing of this Act which authorises the Corporation to acquire land compulsorily;
- (b) any enactment mentioned in the First Schedule to this Act; and
- (c) any local enactment in force at the passing of this Act which authorises the Corporation to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Corporation to execute works on lands or premises within the borough;

require—

- (i) the occupier and any person having an interest in any premises in the borough and any person who either directly or indirectly receives rent in respect of such premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder mortgagee lessee or otherwise or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and
- (ii) any person who has sold or otherwise disposed of leased or let any premises in the borough to state in writing the name and address of the person to whom he has sold or otherwise disposed of leased or let those premises.

PART IX
—cont.

(2) Any person who having been required by the Corporation in pursuance of this section to give to them any information fails to give that information or knowingly makes any misstatement in respect thereof shall be liable to a fine not exceeding five pounds.

(3) For the purposes of this section the expression “interest” includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

(4) The provisions of any of the enactments referred to in paragraph (a) of subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Corporation in so far as they relate to the same subject-matter as this section.

Return of
library
books etc.

64.—(1) Notwithstanding anything in the Public Libraries Acts 1892 to 1919 the powers of the Corporation under those Acts in relation to any library provided by them under those Acts shall include—

- (a) the power to prescribe a period being not less than seven days within which any article borrowed from the library must be returned thereto;
- (b) the power to recover from any person who fails within such prescribed period to return to the library any article so borrowed such reasonable sum as the Corporation may prescribe in respect of each week or portion of a week in which he so fails to return such article together with any expenses incurred by the Corporation in sending to such person notices in respect of such article;
- (c) the power to prohibit any such persons from borrowing any other article from the said library or from any other library provided by the Corporation under the said Acts until such person has paid any such sum as is due to the Corporation under paragraph (b) of this subsection;
- (d) the power to charge such reasonable sum per article as the Corporation may prescribe for reserving an article for a particular person;
- (e) the power to prescribe different periods and charges for the purposes of this section in relation to different articles or kinds of articles:

Provided that the sums prescribed by the Corporation for the purposes of paragraph (b) of this subsection shall not exceed sixpence or such greater sum as may be approved from time to time by the Minister of Education.

(2) In this section "article" includes a book periodical picture gramophone record tape recording film film strip lantern slide map plan print engraving photograph or manuscript or any other article of a like nature.

PART IX
—cont.

65.—(1) The Corporation may lay out as a folk museum any land occupied by them and in respect of any such folk museum may subject to the following provisions of this section exercise the like powers as in respect of a museum provided under the Public Libraries Act 1892. Power to provide folk museum.

(2) The Corporation may provide in the folk museum specimens of buildings and chattels of all kinds whether originals or reproductions of originals which in the opinion of the Corporation suitably represent those used by the people of England in former times.

(3) For the purpose of providing buildings in the folk museum the Corporation may by agreement acquire the materials of any building and demolish and re-erect the same in the folk museum.

(4) The Corporation may charge for admission to any folk museum provided under this Act.

(5) No power conferred upon the Corporation by this section shall be exercised in such a manner—

- (a) as to be at variance with a trust subject to which land or a building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

66.—(1) The Corporation may provide gramophone records tape recordings pictures films film strips lantern slides maps plans prints engravings and photographs and lend or permit the use thereof or of any of them. Power to provide and lend gramophone records etc.

(2) Nothing in this section shall affect the rights of any person under the law for the time being relating to copyright.

67. Section 122 (Provision of lectures and exhibitions etc.) of the Act of 1948 shall have effect as if for subsection (2) of that section there were substituted the following subsection:— Amendment of section 122 of Act of 1948.

- "(2) The Corporation may use or allow to be used or let for public and other meetings and for lectures exhibitions

PART IX
—cont.

and performances for or in connection with the advancement of art education, drama, science, music or literature any part of any public library, art gallery or museum provided by them and not at the time required for the purpose for which it is provided”.

Disposal of unsuitable museum specimens and works of art.

68.—(1) The Corporation may sell, exchange or give away or otherwise dispose of any specimen work of art or book vested in them, which in the opinion of the Corporation is not required for exhibition or use in any museum, art gallery, library or other building of the Corporation.

(2) The Corporation may make arrangements by way of sale, exchange or gift with any person being the owner of any museum, art gallery or library for the transfer to that person of any specimen work of art or book vested in the Corporation which in the opinion of the Corporation is more suitable for exhibition or use in the museum, art gallery or library of that person than in the museum, art gallery or library of the Corporation.

(3) Where any object has become vested in the Corporation by virtue of a gift or bequest, the powers conferred by this section shall not during a period of thirty-five years commencing on the date on which it so became vested be exercisable as respects that object without the consent of the donor or his executors or trustees unless after reasonable inquiry the donor or his executors or trustees cannot be found.

(4) Any moneys received by the Corporation in the exercise of the powers of this section shall be applied by them in the purchase of museum specimens, works of art or books.

Devolution of licences in case of death of licensee.

69. Upon the death of the holder of a licence granted in respect of a place in the borough under the provisions of Part IV of the Public Health Acts Amendment Act 1890 as extended by section 53 (Places used for boxing or wrestling entertainments to be licensed) of the Act of 1948 or the Cinematograph Acts 1909 and 1952 or the Theatres Act 1843, the person carrying on at the place the functions in respect of which the licence was granted or acting as the actual and responsible manager of the place in respect of which the licence was granted shall be deemed to be the holder of the licence until the licence has been transferred to some other person.

Welfare of aged and handicapped persons.

70.—(1) The Corporation may make arrangements for—

- (a) providing aged persons and persons to whom section 29 of the National Assistance Act 1948 applies with meals and for providing aged persons with other domiciliary services in their own homes;
- (b) providing aged persons with recreational facilities in their own homes or elsewhere.

(2) The Corporation may recover from persons availing themselves of any service provided under this section such charges (if any) as having regard to the cost of the service the Corporation may determine whether generally or in the circumstances of any particular case.

PART IX
—cont.

(3) This section shall apply to such aged persons and such persons to whom the said section 29 applies as are resident in the borough.

71. The Corporation may undertake investigations and research into matters affecting the borough relating to—

Research into
matters
concerning
social
conditions etc.

(a) social or economic conditions; or

(b) health or hygiene;

and may contribute by grants or otherwise towards the cost of similar investigations and research undertaken by other bodies or persons.

PART X

GENERAL

72.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

73.—(1) In this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section. The appointed day.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

PART X
—cont.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing or registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business or using any premises for that purpose; and
- (b) had before that day duly applied for the licence or registration required by that provision;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 75 (Appeals) of this Act.

Restriction on
right to
prosecute.

74. Proceedings in respect of an offence created by or under the provisions of this Act (except Part V (Weights and measures) thereof) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation or so far as concerns offences under section 56 (Power to make regulations as to hackney carriage fares etc.) section 57 (Provisions as to motor vehicles let for hire) and section 58 (Restriction on use of loudspeakers in streets) any police officer.

Appeals.

75.—(1) Except as otherwise expressly provided section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a court of summary jurisdiction under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the

requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time;

PART X
—cont.

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business and use those premises for that purpose.

76. For the protection of the North Western Gas Board (in this section referred to as “the board”) the following provisions shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

For protection of North Western Gas Board.

- (1) In this section unless the subject or context otherwise requires—

“apparatus” means pipes and other apparatus belonging to or maintained by the board and includes any works constructed for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under over along across or upon;

“operational land” has the meaning given to that expression by the Act of 1947;

“position” includes depth:

- (2) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Corporation shall so exercise those powers as not to render unreasonably inconvenient the access to any apparatus:—

Section 4 (Amendment of section 22 of Act of 1930);

Section 7 (Parking places in buildings):

- (3) The Corporation or the surveyor (as the case may be) shall not in respect of any operational land of the board exercise the powers conferred upon them by section 18 (Dangerous structures) of this Act without the consent of the board which consent shall not be unreasonably withheld:

PART X
—cont.

- (4) (a) The giving of notice by the Corporation pursuant to section 22 (Maintenance of forecourts to which public have access) of this Act shall not be deemed to authorise any interference with or obstruction of apparatus;
- (b) Notice of the provisions of sub-paragraph (a) of this paragraph shall be embodied in any notice given by the Corporation under the said section:
- (5) (a) Any difference which may arise between the Corporation and the board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be determined by arbitration;
- (b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the board may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

Application of
general
provisions of
Act of 1936.

77.—(1) The sections of the Act of 1936 mentioned in Part I of the Second Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to the following Parts of this Act:—

Part III (Streets sanitation buildings etc.);

Part IV (Fire precautions).

Repeals.

78. The following enactments are hereby repealed:—

Act of 1925—

Paragraph (e) of section 168 (Separate accounts in respect of certain undertakings);

Act of 1937—

Section 77 (Demand complaint information or summons may contain several sums);

Act of 1948—

Section 85 (Amendment of section 77 of Act of 1937);

Section 90 (Amendment of section 27 of Weights and Measures Act 1889 in its application to the borough).

79. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

PART X
—cont.
Saving for
town and
country
planning.
Costs of Act.

80. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds and in such proportions as the Corporation shall determine or out of money to be borrowed under this Act for that purpose.

SCHEDULES

Section 63.

FIRST SCHEDULE

ENACTMENTS MENTIONED IN SECTION 63. (POWER TO REQUIRE INFORMATION AS TO OWNERSHIP OF PREMISES)

Public Health Act 1875.

Public Health Acts Amendment Act 1890.

Public Health Acts Amendment Act 1907.

Public Health Act 1925.

Public Health Act 1936.

Housing Act 1957.

Section 77.

SECOND SCHEDULE

SECTIONS OF ACT OF 1936 APPLIED

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284	Authentication of documents.
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SECTIONS APPLIED TO PARTS III AND IV OF THIS ACT

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295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint etc.
329	Saving for certain provisions of the Land Charges Act 1925.

Table of Statutes referred to in this Act

Short title	Session and chapter
Theatres Act 1843	6 & 7 Vict. c. 68.
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Towns Improvement Clauses Act 1847	10 & 11 Vict. c. 34.
Town Police Clauses Act 1847 ...	10 & 11 Vict. c. 89.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Weights and Measures Act 1889 ...	52 & 53 Vict. c. 21.
Lunacy Act 1890	53 & 54 Vict. c. 5.
Public Health Acts Amendment Act 1890	53 & 54 Vict. c. 59.
Public Libraries Act 1892	55 & 56 Vict. c. 53.
Small Dwellings Acquisition Act 1899 ...	62 & 63 Vict. c. 44.
Open Spaces Act 1906	6 Edw. 7 c. 25.
Public Health Acts Amendment Act 1907	7 Edw. 7 c. 53.
Cinematograph Act 1909	9 Edw. 7 c. 30.
Trustee Act 1925	15 & 16 Geo. 5 c. 19.
Law of Property Act 1925	15 & 16 Geo. 5 c. 20.
Land Charges Act 1925	15 & 16 Geo. 5 c. 22.
Public Health Act 1925	15 & 16 Geo. 5 c. 71.
Rochdale Corporation Act 1925 ...	15 & 16 Geo. 5 c. xlv.
Sale of Food (Weights and Measures) Act 1926	16 & 17 Geo. 5 c. 63.
Petroleum (Consolidation) Act 1928 ...	18 & 19 Geo. 5 c. 32.
Rochdale Corporation (General Powers) Act 1930	20 & 21 Geo. 5 c. cxxii.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Factories Act 1937	1 Edw. 8 & 1 Geo. 6 c. 67.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
Rochdale Corporation Act 1937 ...	1 Edw. 8 & 1 Geo. 6 c. lxvii.
Local Government Superannuation Act 1939	2 & 3 Geo. 6 c. 18.
Pensions (Increase) Act 1944	7 & 8 Geo. 6 c. 21.
Water Act 1945	8 & 9 Geo. 6 c. 42.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6 c. 31.
Pensions (Increase) Act 1947	10 & 11 Geo. 6 c. 7.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
National Assistance Act 1948	11 & 12 Geo. 6 c. 29.
Rochdale Corporation Act 1948 ...	11 & 12 Geo. 6 c. xlvii.
Housing Act 1949	12 13 & 14 Geo. 6 c. 60.
Magistrates' Courts Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Cinematograph Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 68.
Food and Drugs Act 1955	4 Eliz. 2 c. 16.
Clean Air Act 1956	4 & 5 Eliz. 2 c. 52.
Road Traffic Act 1956	4 & 5 Eliz. 2 c. 67.
Housing Act 1957	5 & 6 Eliz. 2 c. 56.

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